

Tentative Rulings for June 22, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Kari Gates at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2501974	DOE D.B., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	MOTION FOR TRANSFER OF VENUE

Tentative Ruling: Motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506420	MCFARLAND VS NATIONAL VISION, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Motion for Protective order is denied. Request for Sanctions is denied for substantial justification. SROGs and RFAs are subject to the rule of 35. CCP §§ 2030.030(a)(1) and 2033.030(a) On a motion for protective order challenging the declaration of necessity, the propounding party has the burden to justify the excess amount of requests. (*Id.* at §2030.040(b), 2033.040(b).) Plaintiff does so by explaining the relevance of Defendant’s corporate structure, possible alter egos of other eyecare locations, who the equipment in the eyecare center belonged to, the layout of the premises, and facts regarding the incident itself. Review of the requests themselves show they are consistent with the justification Plaintiff makes in opposition. (Declaration of Priscilla Hernandez, Exhibits I and J.) Plaintiff justifies the excess number of requests.

With the excess amount justified, the burden is on Defendant to show that the undue burden of discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (*Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) Defendant fails to provide a specific factual showing as to the quantum of work required to respond required to support an argument of an undue burden. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) Defendant’s other arguments are not persuasive. The fact that a RFA or interrogatory may have a similar answer does not mean the request or interrogatory itself is unreasonable cumulative or duplicative – they are different discovery devices. The fact that the same information may be gathered via deposition is not grounds for a protective order.

There is no limit on RFPs. (CCP § 2031.010.) Defendant argues the additional 19 RFPs are unreasonably cumulative, duplicative, and unduly burdensome. Defendant’s arguments regarding cumulative and duplicative fail for the reasons discussed above. Such an objection is valid only if discovery sought is unreasonably cumulative or duplicative. (See CCP § 2019.030(a)(1).) While multiple requests may require the production of the same or similar documents or information provided in responding to the SROGs or RFAs, the actual requests are not duplicative or cumulative. Defendant’s argument that the RFPs are unduly burdensome fail. Again, Defendant’s motion does not include specific factual showing to quantify the “quantum of work required” to respond. (*West Pico Furniture Co., supra*, 56 Cal.2d at 417.)